Fort Bend County District Court

Cause No. 2024-CV-0020

Sara Davis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 11, 2024
Plaintiff's counsel:	Debra Moody, Brown & Shaw Law Group

PARTIES

Plaintiff Sara Davis is an individual residing in Texas who was injured in the collision described below. Defendant is an automobile insurance carrier authorized to do business in the State of Texas, which issued the policy under which Plaintiff seeks coverage and benefits.

FACTS

On June 4, 2023, Plaintiff was lawfully operating a passenger vehicle on a public roadway in Sugar Land, Texas. Plaintiff was turning left at an intersection when another motorist, traveling in the opposite direction, struck Plaintiff's vehicle. The impact caused Plaintiff's vehicle to strike the roadway and sustained damage to its front and driver-side areas. Plaintiff reported the collision promptly and submitted a claim under the applicable coverage, including medical payments and uninsured or underinsured motorist benefits where applicable. Defendant has not paid the claim in full and has not provided a written explanation of its position within the time required by Texas law.

NEGLIGENCE

The at-fault driver failed to yield the right of way, failed to keep a proper lookout, and failed to take reasonable action to avoid the collision. Those failures constitute negligence. Defendant is liable under the policy terms and under Texas law for benefits owed to Plaintiff, and Defendant breached its contractual obligations by delaying and underpaying the claim without a reasonable basis.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion, with headaches, dizziness, light sensitivity, and cognitive difficulty. Plaintiff has incurred medical expenses for emergency care, imaging, and ongoing treatment, lost wages from missed work, and suffered physical pain, metnal anguish, and diminished enjoyment of life. These losses are expected to continue. Plaintiff seeks damages in the amount of $233,000.00, together with statutory interest, attorney's fees, and court costs as allowed under Texas law.